

e.g., Garrido, supra, 241 Cal.App.4th 833, 844-845; .) The *Iskanian* rule against dividing a PAGA action into individual and non-individual claims and which precludes a Court from ordering PAGA claims to arbitration in part because PAGA claims, even if based on violations of the Labor Code as to only one aggrieved employee, is a representative action on behalf of the state therefore applies. (*Villalobos v. Maersk, Inc.* (2025) 114 Cal. App. 5th 1170, 1196-1200 ["In short, California law applies, without regard to the preemption ruling in *Viking River*, so the 'rule of *Iskanian*'—that 'precludes division of PAGA actions into individual and non-individual claims through an agreement to arbitrate' [citation omitted]—does apply. In addition, under California law, the principle applied in the *Correia* line of cases—that 'an employee's predispute agreement to arbitrate PAGA claims is not enforceable without the state's consent' [citation omitted]—has not been overruled." (*Id.* at 1199.)

On this additional ground, the motion to compel arbitration of the twelfth cause of action, the PAGA cause of action for civil penalties, is denied.

17. 9:00 AM CASE NUMBER: C25-02308
CASE NAME: THE PEOPLE OF THE STATE OF CALIFORNIA, VS. ACME FILL CORP.,
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**
FILED BY: ACME FILL CORP.,
TENTATIVE RULING:

Before the Court is a motion to strike ("Motion") filed by defendant Acme Fill Corp. ("Defendant"), which seeks to strike paragraphs 45 through 50 and 80 through 84, of the first amended complaint ("Complaint") filed by plaintiff The People of the State of California by and through the Bay Area Air Quality Management District ("Plaintiff").

For the reasons set forth below, the Court's tentative ruling is to DENY Defendant's motion to strike.

Meet and Confer

The meet and confer requirement has been satisfied. (Thomas Bruen Decl., ¶ 2; Code Civ. Proc., § 435.5, subd. (a)(3)(A).)

Requests for Judicial Notice

RJN ISO Motion

Defendant requests the Court to take judicial notice of the California Landfill Methane Rule ("LMR") found at California Code of Regulations, sections 95460 through 95476 and Appendix I, via Evidence Code section 452, subdivisions (b), (c), and (h). Plaintiff has not objected to this request. Defendant's request for judicial notice is granted.

RJN ISO Opposition

Plaintiff requests the Court to take judicial notice of six California Air Resource Board ("CARB") documents. (RJN ISO Opposition, ¶¶ 1-6, Exhs. A – F; Baptiste Decl., ¶¶ 1-10, Exhs. A – F.) These

documents include two staff reports (Exhs. A and E), an addendum to the final statement of reasons for rulemaking (Exh. B), an implementation guidance document (Exh. C), a final statement of reasons for rule making document (Exh. D), and a December 2025 settlement agreement between Anderson Landfill and CARB (Exh. F).

Plaintiff requests judicial notice of Exhibits A – E pursuant to Evidence Code section 452, subdivisions (b) and (c), and requests judicial notice of Exhibit F pursuant to Evidence Code section 452, subdivisions (c) and (h). All of these documents are available on the CARB website (ww2.arb.ca.gov), and Defendant has not objected to these requests. Plaintiff's requests for judicial notice are granted.

RJN ISO Reply

Defendant requests the Court to take judicial notice of a notice of an availability of modified text document, which relates to proposed amendments to the regulation on methane emissions from municipal solid waste landfills. Defendant requests judicial notice of this document pursuant to Evidence Code section 452, subdivisions (c) and (h). This document is available on the CARB website (ww2.arb.ca.gov), and Plaintiff has not objected to this request. Defendant's request for judicial notice is granted.

Background – Facts Alleged in Complaint

Plaintiff filed the original complaint in this matter on August 13, 2025, and the currently operative amended complaint ("Complaint") on December 2, 2025. The Complaint alleges two causes of action. (Complaint, p. 11.) The first is for alleged landfill gas collection system leaks and the second is for alleged landfill surface leaks. (*Ibid.*)

Defendant operates a sanitary landfill in Martinez, California. (Complaint, ¶ 55.) On August 24, 2023, Plaintiff conducted an inspection at the landfill, which included examining the landfill gas collection system components for leaks. (*Id.*, at ¶¶ 57, 58.) During this inspection, Plaintiff discovered one leak from a component of the landfill gas collection system that exceeded permissible limits. (*Id.*, at ¶ 59.) Defendant repaired the leak the day after it was discovered. (*Id.*, at ¶ 63.) Plaintiff also discovered four landfill surface leaks during the inspection. (*Id.*, at ¶ 66.) Two of these four leaks were fixed the day they were discovered and two were fixed the next day. (*Id.*, at ¶ 68.)

Plaintiff seeks penalties for the five leaks from Defendant in the amount of up to \$175,700. (Complaint, pp. 12-13.)

Legal Standard

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc., § 436(a) and (b).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice under Evidence Code §§ 452 and 453. (Code Civ. Proc., § 437(a) and (b).) "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true." (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the

complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Analysis

Paragraphs 45 through 50 and 80 through 84 of the Complaint

Defendant argues that paragraphs 45 through 50 and 80 through 84 of the Complaint are improper and should be stricken because the Complaint alleges that Defendant complied with the corrective action and cure provisions such that no violation has occurred. (Notice of Motion, pp. 2-4; MPA ISO Motion, pp. 1-2.) Defendant proposes that the second cause of action seeks penalties for violations of Regulation 8-34-303 and Section 95465 (a) of the LMR, but the penalties being sought are not applicable because of Defendant's prompt repair of the surface leaks.

Specifically, Defendant focuses on Section 95469, subdivision (a) of the LMR. (MPA ISO Motion, pp. 2:21-3:7.) Defendant argues that its prompt remediation means there was no violation, but just an exceedance, according to Section 95469, subdivision (a). (*Id.*, at pp. 2-3.) Defendant argues that although Plaintiff will likely argue that this section and the cure periods it establishes only apply to self-detected leaks, this is not true because Section 95469(a)(1)(D) addresses exceedances detected during compliance inspections and provides that the only consequence is a return to quarterly testing. (*Id.*, at p. 4.) Defendant asserts that "[u]nder the canon of *expressio unius est exclusio alterius*, the California Air Resources Board's choice to specify a non-monetary consequence (increased monitoring frequency) excludes the imposition of immediate fines for remediated leaks." (*Ibid.*) Defendant points out that Section 95469(a)(1)(B)(2) provides what a violation is and that a violation only occurs "[i]f the re-monitoring shows a third exceedance, the owner or owner or operator must install a new or replacement well as determined to achieve compliance no later than 120 calendar days after detecting the third exceedance, or it is a violation of this subarticle."

Defendant also asserts due process is implicated here and that "[t]he Fair Notice Doctrine mandates that a regulation be sufficiently clear to provide a person of ordinary intelligence a reasonable opportunity to know what is prohibited." (MPA ISO Motion, p. 6.) Defendant finally implies that the regulations here are ambiguous and that the Rule of Lenity should be considered, which provides that where a regulation provides for a civil penalty and it is ambiguous, courts should strictly construe it against the government. (*Id.*, at p. 7.) Citing *Bittner v. United States* (2023) 598 U.S. 85, and *U.S. v. Trident Seafoods Corp.* (9th Cir. 1995) 60 F.3d 556, Defendant argues that the "LMR does not clearly and unambiguously state that strict liability penalties apply the moment an agency inspector detects a surface exceedance, nor does it state that such penalties accrue daily until corrected." Thus, Defendant concludes that Plaintiff's attempt to penalize it must fail. (MPA ISO Motion, p. 8.)

In its Opposition, Plaintiff argues that an exceedance of the LMR's methane limit is a violation due to the usual and ordinary meaning of the language used in the LMR. (Opposition, p. 5.) Plaintiff argues that the LMR is not ambiguous (Opposition, pp. 6-7) and that Defendant's misstatement of the LMA and self-monitoring grace period does not render the LMR ambiguous (*Id.*, at pp. 7-9.). Plaintiff asserts that Defendant's interpretation seeks to apply an opportunity to correct a violation found from self-monitoring to the entire LMR and that Defendant's reading would nullify Section 95465's clear prohibition on any exceedance greater than 500 ppmv (*Id.*, at p. 9.)

Plaintiff further argues that Defendant's reading of the LMR and its attempt to apply the self-monitoring cure periods and framework to the LMR as a whole would defeat the core purpose of the regulations (to lower pollution) and bring about absurd results that would "strip regulators of any ability to enforce violations of the LMR and would allow exceedances to continue for up to 120 days. Further, it would absurdly provide the opportunity to cure to recalcitrant polluters who choose not to self-monitor or to repair leaks until a regulator inspects and focuses enforcement efforts on them." (Opposition, p. 10.) Plaintiff cites *Department of Alcoholic Beverage Control v. Alcoholic Beverage Control Appeals Bd.* (2003) 109 Cal.App.4th 1687, 1696, for the principle that "[r]egulations are not interpreted in a manner that results in absurd consequences or defeats the core purpose of their adoption."

Plaintiff points out that CARB is entitled to deference with respect to its interpretation of the LMR, citing *American Chemistry Council v. Office of Environmental Health Hazard Assessment* (2020) 55 Cal.App.5th 1113, 1148, for the general principle that, "courts will be deferential to government agency interpretations of their own regulations, particularly when the interpretation involves matters within the agency's expertise and does not plainly conflict with a statutory mandate." (Opposition, pp. 11-12.) Plaintiff distinguishes the *Trident* case and asserts that there is no due process violation here because there is no ambiguity or lack of clarity on which to premise the allegations and that the regulated community has had longstanding, consistent notice of CARB's interpretation of these regulations. (*Id.*, at pp. 12-14.)

On Reply, Defendant argues that new proposed language for Section 95469(a)(1)(D) shows that the current version lacks a penalty. The current language of Section 95469(a)(1)(D), provides that "[a]ny exceedances of the limit specified in section 95465(a)(1) detected during any compliance inspections will result in a return to quarterly monitoring of the landfill." (Reply, p. 3.) The new proposed language will be, "[a]ny exceedances of the limit specified in section 95465(a)(1) detected during any compliance inspections are a violation of this subarticle." Defendant also repeats its argument about the canon of *expressio unius est exclusio alterius* ("the express mention of one thing excludes all others") barring Plaintiff from seeking penalties where the regulation only specifies a return to quarterly monitoring. (*Id.*, at p. 4.) Defendant also offers additional argument on the Fair Notice Doctrine and the Rule of Lenity. (*Id.*, at pp. 4-6.) Defendant finally asserts that granting the Motion will aid in resolution of this action. (*Id.*, at p. 7.)

It is true that a party may seek to strike a portion of a cause of action:

We recognize that in some cases a portion of a cause of action will be substantively defective on the face of the complaint. Although a defendant may not demur to that portion, in such cases, the defendant should not have to suffer discovery and navigate the often dense thicket of proceedings in summary adjudication. We conclude that when a substantive defect is clear from the face of a complaint, such as a violation of the applicable statute of limitations or a purported claim of right which is legally invalid, a defendant may attack that portion of the cause of action by filing a motion to strike.

(*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.)

However, this is not something to be used often or gratuitously.

We emphasize that such use of the motion to strike should be cautious and sparing. We have no intention of creating a procedural “line item veto” for the civil defendant. However, properly used and in the appropriate case, a motion to strike may lie for purposes discussed in this opinion.

(*PH II, Inc. v. Superior Court*, *supra*, 33 Cal.App.4th at p. 1683.)

Further, a decision to strike is never mandated and is always in the discretion of the court.

The court **may**, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(Code of Civ Proc., § 436, emphasis added.)

Here, Defendant acknowledges that the interpretation of a statute or regulation is a question of law for the courts. (MPA ISO Motion, p. 6:13.) The Court’s view is that all of the subparts to subdivision (a) of Section 95469, only apply where subdivision (a) is satisfied. Subdivision (a) of Section 95469, provides that “[a]ny owner or operator of a MSW landfill with a gas collection and control system must conduct instantaneous and integrated surface monitoring of the landfill surface quarterly using the procedures specified in section 95471(c).” The Court agrees with Plaintiff that this section does not apply to the instant Complaint because this action did not arise from Defendant’s quarterly monitoring. (Complaint, ¶¶ 57-60.) This is the plain meaning of the regulation. It makes no sense to read a subpart of a subdivision dealing with quarterly self-monitoring to apply to the entire LMR.

Defendant argues that because subdivision (a)(1)(D) of Section 95469 provides that “Any exceedances . . . detected during any compliance inspections will result in a return to quarterly monitoring of the landfill,” that this means that there can be no other penalty due to the canon of *expressio unius est exclusio alterius*. (MPA ISO Motion, p. 4.) However, the Court disagrees.

Section 95465 clearly provides that “Except as provided in sections 95464(d), 95464(e), and 95466. . . no location of the MSW landfill surface may exceed either of the following methane concentration limits: (1) 500 ppmv, other than non-repeatable, momentary readings, as determined by instantaneous surface emissions monitoring. (2) An average methane concentration limit of 25 ppmv as determined by integrated surface emissions monitoring.” Section 95472 provides that “[p]enalties may be assessed for any violation of this subarticle pursuant to Health and Safety Code section 38580. Each day during any portion of which a violation occurs is a separate offense.” As “violation” is not a defined term, it is logical that exceeding “500 ppmv, other than non-repeatable, momentary readings, as determined by instantaneous surface emissions monitoring,” is a violation. Section 95469(a) deals with a situation not alleged here and does not guide the analysis for the instant dispute.

The Court does not find that any due process considerations apply here. Further, the Fair Notice

Doctrine and Rule of Lenity are not implicated due to the clear language of Section 95465 and 95472 and the inapplicability of Section 95469(a).

Ruling

For the reasons discussed above, the Court **DENIES** Defendant's motion to strike.

18. 9:00 AM CASE NUMBER: MSC21-00513

CASE NAME: STANDEFER VS SIERRA-AT-TAHOE

***HEARING ON MOTION IN RE: COMPLIANCE HEARING (SET BY THE COURTROOM)**

FILED BY:

TENTATIVE RULING:

Summary

Upon review of Plaintiff's Compliance Statement filed on April 23, 2026, the Court finds that the Parties complied with the Final Order Approving Settlement filed on September 10, 2025. The Court hereby orders the release of the remaining 5% in attorney's fees to Plaintiff's counsel. Plaintiff's counsel shall prepare and e-file a conforming order no later than five (5) days from the date of this hearing. No appearance is required at the May 6, 2026 hearing.

19. 9:00 AM CASE NUMBER: MSC21-01757

CASE NAME: MARSHA TILLER VS U.S. BANK

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**

FILED BY: VALUATION ONE INC A CALIFORNIA CORPORATION

TENTATIVE RULING:

This hearing was vacated by the moving party. No appearance is required on May 6, 2026.

20. 9:00 AM CASE NUMBER: PS25-1449

CASE NAME: SCOTT JACOBY VS. STEVEN CHAN

***HEARING ON MOTION IN RE: MOTION TO DISMISS THE CASE FOR NON-PAYMENT OF REAL PROPERTY PURCHASE OF DEFENDANTS' SENIORS RETIRENT RESIDENCE**

FILED BY: JACOBY, SCOTT

TENTATIVE RULING:

The Parties and counsel are ordered to appear in person or remotely to provide the court with a status of the proceedings.

21. 9:00 AM CASE NUMBER: PS25-1449

CASE NAME: SCOTT JACOBY VS. STEVEN CHAN

***HEARING ON MOTION IN RE: NOTICE OF MTN AND MTN TO DISMISS THE CASE FOR NON-PAYMENT OF REAL PROPERTY PURCHASE OF DEFENDANTS SENIOR RETIREMENT RESIDENCE;
DECLARATION IN SUPPORT OF MTN**

FILED BY: CHAN, STEVEN L.

TENTATIVE RULING:

The Parties and counsel are ordered to appear in person or remotely to provide the court with a status of the proceedings.